

PERFORMANCE WORK STATEMENT (PWS)

Title: U.S. ARMY COMBAT CAPABILITIES DEVELOPMENT COMMAND CHEMICAL BIOLOGICAL CENTER (DEVCOM CBC) HIGH-HAZARD WASTE MANAGEMENT

C.1 SCOPE. This is single award Indefinite Delivery/Indefinite Quantity (ID/IQ) contract with performance-based task and delivery orders for U.S. Army Combat Capabilities Development Command Chemical Biological Center (DEVCOM CBC) and other customers. The contract provides for the management of high-hazard waste. Management can include planning, packaging, transportation, treatment, and disposal. In many instances, the waste involves various chemical and biological warfare agents.

C.1.1 Administration.

C.1.1.1. This contract will be administered through performance-based practices and establish a Quality Assurance Surveillance Plan (QASP) as the overarching management tool in accordance with (IAW) Revolutionary Federal Acquisition Regulation Overhaul (RFO) FAR Subpart 37.1, Performance-Based Acquisition. Individual task orders may contain QASPs which may include specific performance standards and inspection methods for those task orders.

C.1.2 Background. DEVCBC provides executive management of Army and joint service Nuclear, Biological, and Chemical (NBC) defense research development, and engineering programs for NBC defense systems, and serves as the single executive agent throughout each program's life cycle. DEVCBC has a mission to treat and dispose of chemical and biological agents, other high-hazard chemicals, and the resulting wastes safely and effectively. DEVCBC may also be called upon to deal with items related to chemical or biological agents or other materials requiring high hazard operations experience.

C.1.2.1 The two significant types of known modern chemical agents are blister agents and nerve agents.

C.1.2.1.1 Blister agents are persistent agents that act on the eyes, lungs, and skin and burn and blister the skin or any other part of the body they contact. The common names and chemical names of examples of blister agents are as follows:

- (a) LeVinson mustard (H)
- (b) Distilled mustard (HD)
- (c) Mixture of chemical agents H (HT)
- (d) Lewisite (L)

C.1.2.1.2 Nerve agents are organophosphorus compounds chemically related to pesticides and include the G and V agents. All nerve agents injure and kill by binding to cholinesterase, an enzyme of the human body that is essential for

functioning of the nervous system; they produce a range of neurological disorders followed by paralysis and cardiovascular or respiratory failure. The common name and chemical name of examples of nerve agents are as follows:

- (a) Tabun (GA)
- (b) Sarin (GC)
- (c) Soman (GD)
- (d) Venomous agent (VX)

C.1.2.2. The types of biological agents and toxins covered by this scope have the potential to pose a severe threat to public health and safety, to animal and plant health, or to animal or plant products. These organisms may include microorganisms and biological toxins listed on Centers for Disease Control and Prevention (CDC) Biological Select Agents & Toxins (BSAT) list and could include Risk Group 1-4 (RG1-4) viruses, bacteria, fungi, and toxins (National Institutes of Health (NIH) Guidelines). BSAT will be decontaminated before transport for disposal.

C.1.2.3 Other high-hazard chemicals or materials requiring specialized handling, transportation, deactivation, and disposal may include, but are not limited to explosives, energetics, opioids such as fentanyl and cocaine, and their precursors.

C.1.3 Objective. The purpose of this contract is to safely package, transport, and incinerate, or treat and dispose of hazardous waste resulted from the treatment of various chemical agents and/or biological agents as described above, or other high hazard chemicals. These efforts may also require significant planning to include the meetings, preparation of plans and procedures, meetings with regulators or stakeholders, table-top exercises, preoperational surveys, and site assessments. Some of these wastes have not been decontaminated and pose an acute contact and or vapor hazard. Some of the wastes have been decontaminated but still contain trace amounts of the toxic/high hazard chemical. Chemical, biological, or high-hazard waste could consist of discarded items from the operations and maintenance activities, which includes but is not limited to Personal Protective Equipment (PPE), metal pieces, parts, soil, rags, empty containers, decontamination solution, etc. Work under this contract can be in and outside the continental United States. The Contractor shall also provide technical expertise on commercial disposal/treatment options for items related to chemical or biological agents, or other materials requiring high hazard operations experience. Section C.3 details the potential services anticipated. The scope of this objective includes, but is not limited to, providing management, planning, and disposal services for large-scale, long-term demilitarization projects, such as the disposal of the Fort Detrick Steam Sterilization Plant. The objective also includes providing waste management and disposal solutions for other Federal Agencies on a case-by-case basis, to include the Department of Homeland Security (DHS), the Drug Enforcement Administration (DEA), the Environmental Protection Agency (EPA), and other DoD components as required.

C.2 APPLICABLE DOCUMENTS. Documents listed below form a part of this contract to the extent invoked by specific reference in other paragraphs of this contract. If

a document is referenced without indicating the specific paragraph as being applicable, then the document is applicable in its entirety, or as specified in the individual task or delivery order. Additional documents will be included in individual task orders as applicable.

C.2.1 Environmental Protection Agency (EPA) SW 846, Test Methods for Evaluating Solid Waste, Physical/Chemical Methods, Revision 7.

C.2.2 International Organization for Standardization (ISO) 9001:2015 Quality Management Systems

C.2.3 ISO/IEC 17025:2017 General Requirements for the Competence of Testing and Calibration Laboratories

C.2.2.4 Chemical Materials Agency (CMA) Bounding Transportation Risk Assessment, September 2008

C.3 REQUIREMENTS. The Contractor, as an independent Contractor and not as an agent of the Government, shall, as applicable, provide subject matter expertise, plan for, package, transport, treat, dispose of, and provide necessary documentation for high-hazard or hazardous waste in a safe and environmentally sound manner. The Contractor may be requested to support on-site decontamination/treatment operations, to include the providing of systems to accomplish said operation to appropriately prepare the waste for safe transportation and final disposal. The Contractor may also be requested to provide management or subject matter expertise with the development of onsite systems for the destruction or treatment of waste. These wastes are described below and summarized in Attachment A, Summary of Waste Categories.

C.3.1 >1 VSL Solid Waste for incineration (Chemical Agent level > 1 Vapor Screening Level (VSL)).

C.3.1.1 The Government will package the wastes in Department of Transportation (DOT) approved containers which are burnable like poly or fiber by the operator of the site. If waste is packaged in metal drum, then metal ring and bolt will be removed, and the entire metal drum will be placed in DOT approved poly over pack.

C.3.1.2 The Contractor shall arrange the transportation of waste from the storage site to the Contractor's incineration facility. Trailers used to transport waste shall be refrigerated if requested by the Government. The Government may also require trailers capable of being head-space monitored while the doors remain closed.

C.3.1.3 Waste shipments will be scheduled with the Contractor. The Government will provide the necessary information regarding waste characterization. The containers shall not be opened at the Contractor's facility.

C.3.1.4 For military chemical agent waste, the Government will monitor the air inside each transportation trailer for chemical agent before the contractor loads the waste to ensure there are not interferent chemicals present and will monitor the air inside each trailer for chemical agent after waste loading to validate there are no leaking containers prior to shipment.

C.3.1.5 For military chemical agent waste, the Government will monitor the air for chemical agent, when applicable, inside each trailer upon arrival at the contractor's facility prior to opening the doors to the trailer. The Contractor will have an acceptable contingency plan for dealing with any trailer, and its' waste, found to have confirmed levels of agent as a result of the air monitoring conducted prior to unloading. The Contractor shall perform all off loading and handle the waste in accordance with an acceptable health and safety plan. The Contingency and Health and Safety Plans shall be submitted to the Government for review.

C.3.1.6 The Contractor will arrange for the expediting of all ≥ 1 VSL waste shipments for immediate treatment following successful monitoring of the air for chemical agent in the trailer. The Government may witness the disposal of ≥ 1 VSL wastes shipped and burned at the Contractor's facility.

C.3.1.7 The Contractor shall use a Rotary Kiln Incinerator for the treatment of all chemical, biological, and high-hazard waste unless otherwise approved by the Government. All containers will be fed to the kiln without opening/removing the lids, or in any way compromising the integrity of the shipping container unless otherwise approved by the Government.

C.3.1.8 The Contractor will operate the kiln at the appropriate temperatures and waste retention time to ensure complete treatment of all waste. For the purposes of this SOW, complete treatment means that waste exiting the furnace is not identifiable. Any identifiable waste shall be collected and reprocessed by the Contractor.

C.3.1.9 The Contractor shall maintain all required permits from local authorities, State and Federal Government.

C.3.1.10 The Contractor shall transport all ≥ 1 VSL waste in accordance with the provisions defined in the CMA Bounding Transportation Risk Assessment (TRA) and its implementing guidance unless otherwise specified by the Government.

C.3.1.11 The Contractor shall coordinate with the Government prior to shipment to ensure appropriate communication has occurred with external stakeholders.

C.3.2 < 1 VSL Solid Waste for incineration (Chemical Agent level < 1 Vapor Screening Level (VSL)).

C.3.2.1 The Government will package the wastes in DOT approved containers. If waste is packaged in metal drum, then metal ring and bolt will be removed, and the entire metal drum will be placed in DOT approved poly over pack.

C.3.2.2 The Contractor shall arrange the transportation of waste from the generation site to the Contractor.

C.3.2.3 The Government will schedule waste shipments with the Contractor. The Government will provide the necessary information regarding waste characterization prior to shipment. The Contractor shall not open the containers.

C.3.2.4 The Government may witness the disposal of < 1 VSL wastes shipped and burned at the Contractor's facility.

C.3.2.5 The Contractor shall use a Rotary Kiln for the treatment of all ≤ 1 VSL solid waste unless otherwise approved by the Government. All containers shall be fed to the kiln without opening/removing the lids, or in any way compromising the integrity of the shipping container unless otherwise approved by the Government.

C.3.2.6 The Contractor shall operate the kiln at the appropriate temperatures and waste retention time to ensure complete treatment of all waste. For the purposes of this PWS, complete treatment means that waste exiting the furnace is not identifiable. Any identifiable waste shall be collected and reprocessed by the Contractor.

C.3.2.7 The Contractor shall maintain all required permits from local authorities, State and Federal Government. The Contractor shall comply with all agreements with DEVCOM CBC including issues related to monitoring required by Chemical Treaty.

C.3.3 Caustic Hydrolysate and Liquid Decontamination Solution.

C.3.3.1 The Contractor shall arrange the transportation from the generation site to the Contractor's treatment facility.

C.3.3.2 The Government will schedule waste shipments with the Contractor. The Government will provide the necessary information regarding waste characterization prior to shipment. The Contractor shall not open the containers.

C.3.3.3 The Contractor shall weigh all ISO containers or tankers before and after unloading.

C.3.3.4 The Contractor shall pump out the contents of ISO container or tankers used for shipping and will rinse the inside in accordance with the appropriate regulation(s) (DOT, RCRA, ETC), and treat the rinsate, so they can be returned to the generator or supplier.

C.3.3.5 The Government will communicate to the Contractor any requirements resulting from the Chemical Weapons Convention.

C.3.3.6 The Contractor shall notify the Government of any technical challenges or impacts resulting from the requirements in C.3.3.5.

C.3.3.7 The Contractor shall supply DOT approved ISO container(s), or other approved shipping container(s), for the shipment of the hydrolysate or decontamination solution.

C.3.3.8 The Contractor shall use incineration or deep well injection for the treatment of hydrolysate and decontamination solution.

C.3.3.9 The Contractor shall ensure external stakeholders, to include public interest groups, are normally communicated with regarding the Contractor's operations, and are made aware of the impending shipment(s).

C.3.4 < 1 VSL Solid Waste for Land Disposal in Subtitle C Landfill (Chemical Agent level < 1 Vapor Screening Level (VSL)).

C.3.4.1 The Government will package the wastes in DOT approved containers which may include, but is not limited to, poly or metal drums, yard boxes (wranglers), or roll-offs.

C.3.4.2 The Contractor shall arrange the transportation of waste from the generation site to the disposal site.

C.3.4.3 The Government will schedule waste shipments with the Contractor. The Government will provide the necessary information regarding waste characterization prior to shipment. The Contractor shall not open the containers.

C.3.5 Ton Containers Decontaminated to the GPL level for Chemical Agent.

C.3.5.1 The Government will arrange for the transportation of waste from the generation site to the disposal site.

C.3.5.2 The Government will provide information of the Contaminants of Concern.

C.3.6 Deactivated Biological Agent Secondary Waste.

C.3.6.1 The Government will package the wastes in DOT approved containers which are burnable like poly or fiber by the operator of the site. If waste is packaged in metal drum, then metal ring and bolt will be removed, and the entire metal drum will be placed in DOT approved poly over pack.

C.3.6.2 The Contractor shall arrange the transportation of waste from the storage site to the Contractor's incineration facility. Trailers used to transport waste will be refrigerated.

C.3.6.3 The Government will schedule waste shipments with the Contractor. The Government will provide the necessary information regarding waste characterization prior to shipment. The Contractor shall not open the containers.

C.3.6.4 The Contractor shall perform all off loading and handle the waste in accordance with an acceptable health and safety plan.

C.3.6.5 The Contractor shall arrange for the expediting of all waste shipments for immediate treatment following successful monitoring of the air for chemical agent in the trailer. The Government may witness the disposal of wastes shipped and burned at the Contractor's facility.

C.3.6.6 The Contractor shall use a Rotary Kiln Incinerator for the treatment of all solid waste unless otherwise approved by the Government. All containers will be fed to the kiln without opening/removing the lids, or in any way compromising the integrity of the shipping container unless otherwise approved by the Government.

C.3.6.7 The Contractor will operate the kiln at the appropriate temperatures and waste retention time to ensure complete treatment of all waste. For the purposes of this PWS, complete treatment means that waste exiting the furnace is not identifiable. Any identifiable waste shall be collected and reprocessed by the Contractor.

C.3.6.8 The Contractor shall maintain all required permits from local authorities, State and Federal Government.

C.3.6.9 The Contractor shall coordinate with the Government prior to shipment to ensure appropriate communication has occurred with external stakeholders.

C.3.7 Other High-hazard Waste.

C.3.7.1 The Government will coordinate with the Contractor on the type and quantity of the waste to be treated. Other high hazard chemicals which may, in the presence of air, water, temperature changes, shock, friction, static discharge or contamination, release large and potentially harmful amounts of energy. These materials may require specialized handling, transportation, deactivation and disposal. These materials may include, but are not limited to explosives, highly toxic or explosive compressed gases or liquified compressed gases in cylinders, energetics and pyrophoric materials in cylinders. Certain types of narcotic materials also present extraordinary hazards and risks, and are included herein. Examples include certain opioids, such as fentanyl, cocaine, and their precursor compounds. The category also includes dangerous mixtures, and adulterated pharmaceuticals including certain narcotic materials, Drug Enforcement Administration (DEA) controlled substances (all schedules), and

psychoactive containing products. Examples include marijuana, THC (delta-9-tetrahydrocannabinol), CBD (cannabidiol), and muscimol containing products.

C.3.7.2 The Contractor shall provide the Government with packaging instructions meeting DOT requirements and provided the efficient processing at the facility. Marking and labeling instructions shall be provided to the Government, as necessary.

C.3.7.3 When requested by the Government, the Contractor will arrange for transportation of the waste from the generator's location to the treatment site.

C.3.7.4 When requested by the Government, the Contractor shall allow for witness burn of the waste.

C.3.4.5 The Contractor shall provide all Permits and/or Approvals Updated as an attachment to the status report, Exhibit Line Item Number (ELIN) A002 of the Contract Data Requirements List (CDRL), for any updates to the initial permits and approvals provided during the Contractor's proposal.

C.3.7.6 The Contractor shall provide evidence (photocopy) of any current/existing permits or approval to demonstrate they have a current approved Department of Drug Enforcement Administration (DEA) destruction facility in place that covers the disposal of agent contaminated waste >1.0 VSL waste without opening the containers.

C.3.8 Shipments.

C.3.8.1 The Contractor shall provide a uniform hazardous waste manifest to the Contracting Officer's Representative (COR) no later than three (3) days before the shipment, for all waste removed under this contract.

C.3.8.2 The Contractor shall obtain and prepare all manifests, land ban certification/notification and other required shipping documents for review and signature by the COR or designee.

C.3.8.3 The Contractor shall return copy of manifest to the generator in accordance with applicable federal and State regulations. Within three (3) days of receiving waste, a copy of each manifest shall be sent to the COR.

C.3.8.4 Within 30 calendar days of acceptance, waste shall be incinerated.

C.3.8.5 Within 45 calendar days of receiving waste, an invoice for the entire shipment along with a copy of the manifest and Certificate of Destruction (COD) shall be sent to the COR.

C.3.8.6 When Applicable, the Contractor will assist with the preparation of required documentation to support international waste transportation to include the preparation and processing of requests in accordance with the Basel Convention.

C.3.9 Review and Develop Disposal Options.

C.3.9.1 The Contractor shall review descriptions of wastes, waste profiles and quantities and recommend disposal options.

C.3.9.2 DEVCOM CBC will review the disposal recommendations in consideration of further contract requirements.

C.3.10 Assignment of Task Orders.

C.3.10.1 The Contractor shall commence work upon issuance of specific task orders by the Contracting Officer.

C.3.10.2 Task orders will be assigned by the Contracting Officer only. The Contractor shall not accept task orders from any other individual.

C.3.10.3 The Contracting Officer will forward the proposed task order to the Contractor for evaluation.

C.3.10.4 Within fifteen (15) calendar days (unless otherwise specified) of receipt of the proposed task order, the Contractor shall submit a proposal to the Contracting Officer, in writing, containing as a minimum, the estimated level of performance, materials, travel requirements, estimated cost, and period of performance or completion date.

C.3.10.5 The Contracting Officer may request the proposal includes additional information such as the contractor's technical approach and demonstration of an understanding of the requirement.

C.3.11 Commencing Work.

C.3.11.1 The Contracting Officer will initiate and conclude negotiations and authorize the Contractor to proceed with task(s) by issuance of a task order.

C.3.11.2 The Contractor shall commence work upon assignment of the specific task order by the Contracting Officer.

C.3.11.3 The assignment of task orders by the Contracting Officer will be made with due consideration given to previously assigned and uncompleted tasks.

C.3.12 Performance of Tasks.

C.3.12.1 The Contractor shall identify all correspondence, reports, drawings, and other pertinent papers furnished under the contract with the contract number and appropriate task order number and in accordance with the Contract Data Requirements List (CDRL).

C.3.12.2 Changes to task orders will be made by the Contracting Officer only by task order modifications. The Contractor shall not deviate from the task order at the direction of any individual other than the Contracting Officer. Only the Contracting Officer has the authority to make such changes.

C.3.13 Health, Safety and Environmental. Contractor shall maintain all required local, state, and federal permits as required for hazardous waste handling, transportation, and disposal.

C.3.13.1 The Contractor shall comply with the National Institutes of Health (NIH) Guidelines for Research Involving Recombinant DNA Molecules. Bethesda: The National Institutes of Health (US), Office of Biotechnology Activities; 2002, April/Revised 22 September 09.

C.3.13.2 The Contractor shall comply with all applicable Federal regulations, local safety procedures and security requirements. The Contractor shall ensure that all subcontractors comply with the aforementioned. The contractor will comply with all international laws and regulations, as applicable, for work conducted outside the United States.

C.3.13.3 The Contractor shall notify the government Contracting Officer's Representative (COR) of any accident or incident mishap related to this contract immediately.

C.3.14 Security.

C.3.14.1 Access and general protection/security policy and procedures. This standard language is for contractor employees with an area of performance within an Army controlled installation, facility, or area. Contractor and all associated subcontractors employees shall provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements (Revolutionary Federal Acquisition Regulation Overhaul (RFO) FAR clause 52.204-9, Personal Identity Verification of Contractor Personnel) as directed by DoD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in contractor security matters or processes.

C.3.14.1 For contractors that do not require a CAC, but require access to a DoD facility or installation. Contractor and all associated subcontractor employees shall comply with adjudication standards and processes using the National Crime Information Center Interstate Identification Index (NCIC- III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), applicable installation, facility and area commander installation/ facility access and local security policies and procedures (provided by government representative), or, at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

C.3.15 Administration.

C.3.15.1 Each task assigned to the Contractor will have specific identified data deliverables on a Contract Data Requirements List (CDRL).

C.3.15.2 At a minimum, each task order (unless otherwise specified) shall require the Contractor to prepare and submit monthly progress reports IAW ELIN A001 and a final comprehensive report detailing all the efforts conducted and the results of those efforts IAW ELIN A002.

C.3.15.3 A complete list of CDRLs is located in the table below and also as an Exhibit in Section J.

Data Item No.	Document ID	Data Item Description	Subtitle
A001	DI-MGMT-81928	Contractor's Progress and Status Report	Monthly Progress Report
A002	DI-MGMT-81928	Contractor's Progress and Status Report	Final Comprehensive Report
A003	DI-MGMT-82374	Waste Shipping Documentation	Shipping Documents

C.3.15.4. System for Award Management (SAM) Service Contract Report (SCR): The Contractor shall report ALL Contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract via a secure data collection site. The Contractor is required to completely fill in all required data fields through the following web address: www.sam.gov . Reporting inputs will be for the labor executed during the period of performance during each Government FY, which runs from October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. Contractors may direct questions to the help desk by clicking "View Assistance for SAM.gov" which is located at the top of the SAM.gov website. From there, you can the select "Contact Our Service Desk" which will allow you to contact SAM.gov directly. If contract period of performance ends prior to September 30, the Contractor has 30 calendar days from end date of the contract to complete the SAM SCR requirement.

C.3.15.5 Organizational Conflict of Interest (OCI). To accomplish the work within the scope of this task, the Contractor will have access to certain Government information and data including intellectual information. Therefore, an employee-management firewall shall exist between all contractor personnel performing work under this task and all other parts of the Contractor's organization. This means that the contractor personnel inside the firewall shall not disclose in any manner, or provide access to any information whatsoever, to contractor personnel outside the firewall without the prior and explicit written consent from the Contracting Officer. The Contractor shall provide to the Contracting Officer's Representative (COR), certificates signed by a corporate officer and each individual attesting to compliance with the OCI mitigation agreement included in the basic contract.

C.3.15.6 The reporting period shall be the period of performance ending 30 September of the government fiscal year and must be reported by 31 October of each calendar year.

C.3.15.7 Ordering Period. The contract ordering period is sixty months from the effective date of award.

C.3.15.8 Period of Performance. The period of performance will be specified in each Task Order. No task orders will be issued under this contract, nor any new work added to any previously issued task order, after the end of the ordering period.

C.3.15.9 Places of Performance. This work may be in Continental United States (CONUS) and Outside Continental United States (OCONUS).

Performance Requirements Summary (PRS)

PERFORMANCE OBJECTIVE	STANDARD	PERFORMANCE THRESHOLD ACCEPTABLE QUALITY LEVELS (AQLs)	METHOD OF SURVEILLANCE
All Performance Objective will be specified in Task Order.	All Standard will be specified in Task Order.	All Performance Threshold Acceptable Quality Levels will be specified in Task Order.	All Method of Surveillance will be specified in Task Order.

ATTACHMENT A
Summary of Waste Categories

≥ 1 VSL Solid Waste for incineration (Chemical Agent level ≥ 1 Vapor Screening Level (VSL))

< 1 VSL Solid Waste for incineration (Chemical Agent level < 1 Vapor Screening Level (VSL))

Caustic Hydrolysate and Liqui Decontamination Solution
 < 1 VSL Solid Waste for Land Disposal in Subtitle C Landfill (Chemical Agent Level < 1 Vapor Screening Level (VSL))

Chemical Agent Ton Containers, Decontaminated to the GPL level
Deactivated Biological Agent

Secondary Waste

Narcotics and their precursors (requires DEA License as a Reverse Distributor)

Other High-Hazard Wastes